

1
2
3
4
5
6
7
8
9
0
1
2
3
4
5
6
7
8
9
0
1
2
3
4

April 9, 2026

ENGROSSED HOUSE
BILL NO. 3144

By: Cornwell, Turner, Roberts
and Wolfley of the House

and

Alvord of the Senate

An Act relating to medical marijuana; amending 63 O.S. 2021, Section 422, as last amended by Section 1, Chapter 447, O.S.L. 2024 (63 O.S. Supp. 2024, Section 422), which relates to the licensing of medical marijuana commercial growers; restricting the number of certain licenses Oklahoma Medical Marijuana Authority may approve and issue to applicants; updating language; repealing 63 O.S. 2021, Section 427.14a, as amended by Section 6, Chapter 168, O.S.L. 2023 (63 O.S. Supp. 2025, Section 427.14a), which relates to the Oklahoma Medical Marijuana and Patient Protection Act; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 422, as last amended by Section 1, Chapter 447, O.S.L. 2024 (63 O.S. Supp. 2024, Section 422), is amended to read as follows:

Section 422. A. 1. The Oklahoma Medical Marijuana Authority shall make available on its website in an easy-to-find location an application for a medical marijuana commercial grower license. The application fee shall be paid by the applicant in the amounts

1 provided for in Section 427.14 of this title. A method of payment
2 for the application fee shall be provided on the website of the
3 Authority. The Authority shall have ninety (90) business days to
4 review the application; approve, reject, or deny the application;
5 and send the approval, rejection, or denial letter stating the
6 reasons for the rejection or denial to the applicant in the same
7 method the application was submitted to the Authority.

8 2. Beginning November 1, 2026, the total number of medical
9 marijuana commercial grower licenses the Authority may approve and
10 issue in this state shall be restricted to no more than two thousand
11 five hundred fifty (2,550) licenses.

12 B. The Subject to the restriction set forth in paragraph 2 of
13 subsection A of this section, the Authority shall approve all
14 applications which meet the following criteria:

15 1. The applicant must be twenty-five (25) years of age or
16 older;

17 2. The applicant, if applying as an individual, must show
18 residency in this state;

19 3. All applying entities must show that all members, managers,
20 and board members are Oklahoma residents;

21 4. An applying entity may show ownership of non-Oklahoma
22 residents, but that percentage ownership may not exceed twenty-five
23 percent (25%);
24

1 5. All applying individuals or entities must be registered to
2 conduct business in this state; and

3 6. All applicants must disclose all ownership interests in the
4 commercial grower operation.

5 Applicants with a nonviolent felony conviction in the last two
6 (2) years, any other felony conviction in the last five (5) years,
7 inmates in the custody of the Department of Corrections or any
8 person currently incarcerated shall not qualify for a commercial
9 grower license.

10 C. A licensed medical marijuana commercial grower may sell
11 marijuana to a licensed medical marijuana dispensary or a licensed
12 medical marijuana processor. Further, sales by a licensed medical
13 marijuana commercial grower shall be considered wholesale sales and
14 shall not be subject to taxation. Under no circumstances may a
15 licensed medical marijuana commercial grower sell marijuana directly
16 to a licensed medical marijuana patient or licensed medical
17 marijuana caregiver. A licensed medical marijuana commercial grower
18 may only sell at the wholesale level to a licensed medical marijuana
19 dispensary, a licensed medical marijuana commercial grower or a
20 licensed medical marijuana processor. If the federal government
21 lifts restrictions on buying and selling marijuana between states,
22 then a licensed medical marijuana commercial grower would be allowed
23 to sell and buy marijuana wholesale from, or to, an out-of-state
24 wholesale provider. A licensed medical marijuana commercial grower

1 shall be required to complete a monthly yield and sales report to
2 the Authority. This report shall be due on the fifteenth of each
3 month and provide reporting on the previous month. This report
4 shall detail the amount of marijuana harvested in pounds, the amount
5 of drying or dried marijuana on hand, the amount of marijuana sold
6 to licensed processors in pounds, the amount of waste in pounds, and
7 the amount of marijuana sold to licensed medical marijuana
8 dispensaries in pounds. Additionally, this report shall show total
9 wholesale sales in dollars. The Authority shall have oversight and
10 auditing responsibilities to ensure that all marijuana being grown
11 by licensed medical marijuana commercial growers is accounted for.

12 D. There shall be no limits on how much marijuana a licensed
13 medical marijuana commercial grower can grow.

14 E. Beginning on November 1, 2021, licensed medical marijuana
15 commercial growers shall be authorized to package and sell pre-
16 rolled marijuana to licensed medical marijuana dispensaries. The
17 products described in this subsection shall contain only the ground
18 parts of the marijuana plant and shall not include marijuana
19 concentrates or derivatives. The total net weight of each pre-roll
20 packaged and sold by licensed medical marijuana commercial growers
21 shall not exceed one (1) gram. These final products must be tested,
22 packaged and labeled in accordance with Oklahoma law and rules
23 promulgated by the Authority.

24

1 F. Beginning November 1, 2022, all medical marijuana commercial
2 grower licensees who operate an outdoor medical marijuana production
3 facility shall be required to register with the Oklahoma Department
4 of Agriculture, Food, and Forestry as an environmentally sensitive
5 crop owner. Registration shall provide notice to commercial and
6 private pesticide applicators of the locations of medical marijuana
7 crops and help minimize the potential for damaging pesticide drift.
8 Medical marijuana commercial grower licensees shall provide their
9 business name, address, Global Positioning System (GPS) coordinates
10 for all outdoor medical marijuana production facilities, and any
11 other information required by the Department when registering with
12 the Environmentally Sensitive Area Registry.

13 SECTION 2. REPEALER 63 O.S. 2021, Section 427.14a, as
14 amended by Section 6, Chapter 168, O.S.L. 2023 (63 O.S. Supp. 2025,
15 Section 427.14a), is hereby repealed.

16 SECTION 3. This act shall become effective November 1, 2026.

17 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
18 April 9, 2026 - DO PASS
19
20
21
22
23
24